



SPONSOR: Rep. K. Williams & Sen. Sturgeon
Rep. Ross Levin; Sens. Hoffner, Walsh

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 214

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE INTERAGENCY COMMITTEE
ON AUTISM AND THE DELAWARE NETWORK FOR EXCELLENCE IN AUTISM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 5541, Title 16 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and by redesignating accordingly:

Subchapter IV. Interagency Committee on Autism and the Delaware Network for Excellence in Autism.

§ 5541. Definitions.

~~For the purposes of~~ As used in this subchapter:

(1) “Agencies” ~~shall include~~ means both public and private agencies and associations.

(2) “Autism spectrum disorders” (“ASD”) ~~shall have the same definition as or~~ “ASD” means as defined in the
current edition of the “Diagnostic and Statistical Manual of Mental Disorders” published by the American Psychiatric
Association. “Autism spectrum disorders” (“ASD”) ~~shall also include or~~ “ASD” include related developmental
disabilities ~~whenever people with these disabilities~~ if an individual with a related developmental disability can also
benefit from the improvements and enhancements identified for ~~people~~ an individual with ASD.

(3) “DNEA” means the Delaware Network for Excellence in Austim.

(4) “DNEA Director” means the director of the Delaware Network for Excellence in Autism.

(5) “ICA” means the Interagency Committee on Autism.

~~(3) “People (6) “Individuals living with ASD” shall include the person~~ (6) “Individuals living with ASD” means an individual with ASD and
their legal guardian or guardians. or the individual’s guardian.

Section 2. Amend § 5542, Title 16 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and by redesignating accordingly:

§ 5542. Interagency Committee on ~~Autism.~~ Autism; duties.

~~The General Assembly hereby establishes the Interagency Committee on Autism (ICA) with the charge to:~~ The
Interagency Committee on Autism is established. The ICA’s duties are all of the following:

(1) Utilize evidence-based practices and programs to improve outcomes for ~~people~~ individuals living with ASD and related developmental disabilities in Delaware by sharing information, initiatives, ~~data~~ data, and communications among ~~both public and private~~ agencies providing services and supports for individuals and families affected by autism spectrum disorders in ~~the~~ this State.

(2) Implement the recommendations outlined in the 2013 Delaware Strategic Plan entitled "Blueprint for Collective Action: Final Report of the Delaware Strategic Plan to Improve Services and Supports for Individuals with Autism Spectrum Disorder." This Implementation may include assisting ~~state agencies and partner~~ agencies to develop more detailed or updated implementation strategies and timelines, and to track progress towards specific goals.

(3) Monitor services ~~currently provided by state agencies to people with ASD, that agencies provide to~~ individuals living with ASD, with the goal of identifying gaps and avoiding duplication of services.

(4) Provide oversight for and development of goals and priorities for the ~~Delaware Network for Excellence in Autism (Network), DNEA,~~ created to assist in the implementation of the ~~Committee's~~ ICA's recommendations.

(5) Advise the General Assembly on legislation that is needed to implement these recommendations. The ICA may develop and recommend legislation to the General Assembly or comment on pending legislation that affects ~~those persons.~~ individuals living with ASD.

(6) ~~Submit~~ Collaborate with the DNEA to submit a report annually to the ~~Governor and the General Assembly~~ summarizing: Governor, General Assembly, and the Director and the Librarian of the Division of Legislative Services. The report must summarize all of the following:

a. ~~The progress towards all recommendations adopted by the ICA and the activities of the Network and the ICA;~~ toward each recommendation that the ICA adopts.

b. The progress toward the ICA's and the DNEA's activities.

~~b. c.~~ Major categories of expenses and that includes expenses, including all public, private, and in-kind support.

~~(7) Members of the ICA shall not be compensated directly for their service on the ICA.~~

~~(8) The ICA shall be chaired by the Network Director, who shall be responsible for coordinating quarterly meetings of the ICA with the locations of those meetings moving between state counties regularly.~~

~~(9) The Network Director shall not be a voting member of the ICA.~~

~~(10) Members of the ICA in existence on September 14, 2016, shall maintain their membership.~~

~~(11) New members of the ICA not specifically mentioned below shall be appointed by a majority vote of the existing ICA members.~~

(12) ~~The ICA shall adopt rules for the conduct of its meetings.~~

(13) ~~Any actions taken by the ICA must be approved by a majority vote of the members present.~~

(14) ~~The ICA shall establish policies and adopt rules to carry out its duties.~~

(15) ~~Voting members of the ICA shall consist of, but not be limited to:~~

~~a. The Statewide Director of the Delaware Autism Program;~~

~~b. A representative appointed by the Department of Education;~~

~~c. A representative appointed by the Division of Developmental Disabilities Services;~~

~~d. A representative appointed by the Division of Vocational Rehabilitation;~~

~~e. A representative appointed by the Center for Disabilities Studies at the University of Delaware;~~

~~f. A representative appointed by Autism Delaware;~~

~~g. A representative appointed by the Nemours network;~~

~~h. A representative appointed by the Division of Public Health;~~

~~i. A representative appointed by the Delaware Association of Rehabilitation Facilities;~~

~~j. A representative appointed by the Division of Substance Abuse and Mental Health;~~

~~k. A representative appointed by Family Voices;~~

~~l. A representative appointed by the Parent Information Center of Delaware;~~

~~m. A representative of Part C, Birth to Three Early Intervention System;~~

~~n. A representative appointed by the Division of Prevention and Behavioral Health Services;~~

~~o. A parent or caregiver of a child or adult with ASD from each county in Delaware;~~

~~p. An individual with ASD.~~

(16) ~~Administrative staff support for the ICA shall be provided by the Network.~~

Section 3. Amend § 5543, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 5543. Delaware Network for Excellence in Autism.

(a) ~~The General Assembly hereby establishes the Delaware Network for Excellence in Autism (Network) in order~~
is established to provide a resource for training and technical assistance for Delaware state agencies, ~~organizations~~
organizations, and other private entities operating in the this State who provide services and support to ~~individuals and~~
families individuals living with ASD or families affected by ASD. Services ~~shall be~~ are provided through a contract
between the University of Delaware and the appropriate state ~~agency~~, agency, organization, or other private entity.

(b) ~~The Network shall be run by a Director, who shall be hired by the Center for Disabilities Studies, with representation on the hiring committee by the Interagency Committee for Autism. The DNEA is run by a director. The Center for Disabilities Studies at the University of Delaware shall hire the DNEA Director using a hiring committee, which must include representation from the ICA.~~

(c) ~~The Network Director shall be~~ position of the DNEA Director is housed at the Center for Disabilities Studies at the University of Delaware, which ~~shall be~~ is responsible for supervision of the DNEA Director.

(d) ~~The Director of the Network shall be responsible for the creation of an annual report and submission of such to the Governor and the General Assembly. The DNEA Director shall ensure that the DNEA works with the ICA to compile and submit the annual report under § 5542(6) of this title.~~

(e) ~~Network staff members shall~~ DNEA staff must possess experience in autism spectrum disorders and shall administer training and technical assistance ~~in all cases utilizing~~ that is based on accepted evidence-based practices.

(f) ~~The Network~~ DNEA shall maintain at least 1 administrative support staff position, who ~~shall be~~ is responsible for supporting the day-to-day operations of the Network and ~~shall be overseen by the Network Director. DNEA's day-to-day operations. The DNEA Director oversees the administrative staff.~~

(g) ~~The Network shall consist~~ DNEA consists of at least 4 team leader ~~Network~~ DNEA staff positions, to ensure adequate training across the areas of healthcare, education, vocational ~~services~~ services, and social services. The DNEA Director oversees the DNEA's team leaders.

(h) ~~Team leaders shall be overseen by the Network Director.~~

(i) ~~(h)(1) The Network shall include~~ DNEA includes at least 2 FTEs family trainer/navigators, who ~~shall be~~ are responsible for assisting families in learning about and gaining access to needed services, including those from the state system. ~~These services shall also~~ The services must include community training opportunities for individuals with ASD and families. families of individuals with ASD.

(j) ~~(2) Family navigators shall~~ Each family trainer/navigator must be contracted through Autism ~~Delaware and Delaware. Family trainer/navigators shall provide a quarterly report~~ quarterly reports on the number of families served and major issues encountered to the Network Director and the Interagency Committee on Autism. DNEA Director and the ICA.

(k) ~~(i) The Network~~ DNEA shall develop and maintain a website that does all of the following:

(1) ~~offers~~ Offers public visibility to the activities of the ~~Network, the ICA, DNEA and the ICA.~~

(2) ~~and tracks~~ Tracks progress on attaining the goals of the Blueprint for Collective ~~Action, Action.~~

(3) ~~as well as offering~~ Offers links to key autism services within Delaware.

~~(f) (j) The Network DNEA shall support the ICA's operations of the ICA through the staff support, maintenance of the website, website under subsection (i) of this section, maintenance of reports created by the ICA and minutes of ICA meetings, as well as other support as needed. that the ICA creates, ICA meeting minutes, and other support as needed, including assisting with the training, technical assistance, and coaching under subsection (k) of this section.~~

~~(m) (k) The Network shall consist DNEA consists of additional staff specifically designated to provide training, technical assistance assistance, and coaching to all each local education agencies across Delaware. agency across this State.~~

~~(n) (l) Training The DNEA shall manage training and technical assistance related to education will be managed by the Network education, in collaboration with the office of the Statewide Director of the Delaware Autism Program. Director of Autism Resources.~~

~~(o) (m) The Network DNEA shall also administer additional contracts for training and technical assistance.~~

~~(p) (n) The Network shall have the authority to DNEA may contract with outside individuals and agencies in order to provide needed training and technical assistance consistent with the Network's DNEA's goals.~~

~~(q) (o) Contracts shall be overseen by the Director of the Network. The DNEA Director shall oversee contracts under this subchapter.~~

~~(r) (p) Contracted individuals An individual contracted under this subchapter shall adhere to similar standards of professional qualifications and demonstration of accepted, evidence-based practice as Network DNEA staff.~~

~~(s) (q) The Network Director shall be empowered to DNEA Director may seek and administer outside grant funding as appropriate to fulfill the mission of the Network. DNEA's mission.~~

Section 4. Amend Subchapter IV, Chapter 55 of Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5544. ICA membership; chair; terms; quorum; staffing.

(a) Voting members of the ICA consist of at least all of the following:

(1) A representative of the Department of Education, appointed by that department.

(2) A representative of the Division of Developmental Disabilities Services, appointed by that division.

(3) A representative of the Division of Vocational Rehabilitation, appointed by that division.

(4) A representative of the Center for Disabilities Studies at the University of Delaware, appointed by that center.

(5) A representative of Autism Delaware, appointed by the Governor. Autism Delaware may provide a list of potential nominees, which the Governor may consider.

(6) A representative of the Nemours network, appointed by the Governor. The Nemours network may provide a list of potential nominees, which the Governor may consider.

(7) A representative of the Division of Public Health, appointed by that division.

(8) A representative of the Delaware Association of Rehabilitation Facilities, appointed by the Governor. The Delaware Association of Rehabilitation may provide a list of potential nominees, which the Governor may consider.

(9) A representative of the Division of Substance Abuse and Mental Health, appointed by that division.

(10) A representative of the Parent Information Center of Delaware, appointed by the Governor. The Parent Information Center of Delaware may provide a list of potential nominees, which the Governor may consider.

(11) A representative of Part C, Birth to Three Early Intervention System, appointed by the System.

(12) A representative of the Division of Prevention and Behavioral Health Services, appointed by that division.

(13) A parent or caregiver of a child or adult with ASD from each county in this State, appointed by the Governor.

(14) An individual with ASD, appointed by the Governor.

(b) The DNEA Director is a non-voting member of the ICA.

(c) The DNEA Director serves as the chair of the ICA and shall, as chair, do at least both of the following:

(1) Coordinate quarterly ICA meetings.

(2) Ensure that ICA meetings rotate among the 3 counties of this State.

(d) A member serves until a replacement is appointed under the same process as the member's appointment.

(e) A majority of the members must be present at an ICA meeting in order to have a quorum and conduct official business. A vacancy on the ICA is not counted for quorum.

(f) Each action that the ICA takes must first be approved by a majority vote of the members present at the meeting at which the vote is taken.

(g) Additional members may be appointed by a majority vote of the members appointed under paragraphs (a)(2), (3), (4), (7), (9), and (12) of this section.

(h) The ICA shall adopt procedural rules for the conduct of its meetings.

(i) The ICA shall establish policies and adopt rules to carry out its duties under § 5542 of this title.

(j) Compensation. An ICA member receives no compensation for the member's service on the ICA but may be reimbursed for the member's actual and necessary expenses incurred in the performance of the member's official duties.

(k) Staffing. The DNEA shall provide administrative support for the ICA.

SYNOPSIS

This Act removes the Director of Autism Resources ("Autism Resources"), formerly the "Statewide Director of the Delaware Autism Program," as a member of the Interagency Autism Committee ("ICA"). Autism Resources falls under the Department of Education, and changing this member to a representative of the Department lends more flexibility in selecting a member to represent the Department. This Act also removes the Delaware Family Voices member, because Delaware Family Voices now falls under the Parent Information Center, who already has representation on the ICA. In addition, under this Act the ICA or DNEA may make recommendations on the family and self-advocate ICA positions for consideration by the Governor.

This Act also updates the appointing authority for ICA members that represent non-governmental entities, because the power of appointment cannot be delegated to an entity which is not a part of the state government. See *State ex rel. James v. Schorr*, 65 A.2d 810, 812 (Del. 1948).

This Act also makes technical changes to make existing law conform with the standards of the Delaware Legislative Drafting Manual.